

25VECV05154 25VECV05154

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-07-07

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Case Number: 25VECV05154 Hearing Date: July 7, 2026 Dept: T

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Perez v Gonzalez

On

9/11/2025, plaintiff was served with a Notice of Case Management Statement to counsel of record by mail. It was not returned to the court. The CMC hearing was on 12/17/2025. Defense counsel appeared but plaintiff's counsel did not, and did not file a CMC Statement.

On

12/17/2025, the court issued an OSC to Show Cause re sanctions for plaintiff's counsel's failure to appear at the CMC and failure to file a CMC Statement. It was served on counsel at this email address on his papers. The CMC was continued to 1/9/2026. The CMC statement was ordered to be filed. A written response to the OSC was to be filed no later than 5 court days before the hearing.

On

1/9/2026, plaintiff's counsel failed to appear but defense counsel did appear. Sanctions were assessed per the OSC. The court set an OSC re Contempt for the failure of plaintiff's counsel to appear at court hearings, and failure to respond to the court's OSC as ordered. It was set for 7/7/2026 and served by email.

According

to the declaration under oath by plaintiff's counsel Craig Momita, plaintiff's counsel did not receive the original notice of CMC from 9/11/2025, did not review the OSC served on 12/17/2025. After he returned from vacation, he filed the CMC Statement.

This is the biggest issue for the court: "Plaintiff's counsel did not appear at the January 9, 2026 Case Management Conference and OSC due to the lack of calendared notice and a previously scheduled early-morning commitment." What does this mean? He knew about the CMC on 1/9/2026 because he filed the CMC statement on 1/5/2026. What possible "commitment" could have caused him to ignore a court order to appear? He did not call the court, did not have an appearance attorney appear and did not arranged for coverage from his own firm. The Arias firm list 21 attorneys. Why didn't ANY other attorney appear on 1/9/2026? Why didn't he call the court?

This court has had 3 court appearances on this case, all missed by plaintiff's counsel, and all attended by defense counsel at their unnecessary expense.

Mr. Momita's "explanation" does not ring true. More importantly, this is not the first time that the Arias firm has failed to appear for court hearings in this department, showing an interesting pattern of failing to calendar and/or intentional neglect of appearing. The court will discuss this matter further with Mr. Momita at the hearing. However, the court orders under no circumstances are monetary sanctions assessed against counsel be charged to his client. Despite his declaration stating the sanctions would be paid, as on 7/2/2026, they have not been paid.